Assistant Principal Chief, or the Osage Tribal Council may, at any time before noon on Monday next following the tribal election, file with the supervisor, or in his absence the assistant supervisor, a challenge of the correctness of the announced results of said tribal election and request a recount of the ballots and shall accompany his application with the sum of $60.00. It shall then be the duty of the election board or the supervisor to order said recount and proceed with the same as provided in this part. Said deposits shall be used by the said board to defray, or partially defray the actual expenses of said recount and any balance not so used shall be returned to said contestant.

§ 73.48 *Notice of contest.* It shall be the duty of the supervisor, to serve upon the contestee, or contestees, directly affected by such challenge or contest, a true copy of said written application, the original of which is required to be filed with the supervisor. Said service shall be made in person, where possible, within twenty-four hours after the filing of said original challenge or contest, and where personal service is impossible within such time, on account of the absence of contestee, or contestees, from Osage County, or for any other reason, it is hereby made the duty of the supervisor to serve a true copy upon the Superintendent of the Osage Indian Agency: *Provided*, That for the purpose of such constructive service, the Superintendent is hereby made and constituted the service agent of each and every candidate in all tribal elections, and by filing petition as a candidate, such candidate shall thereby be presumed conclusively to have accepted the terms and provisions hereof and specifically the constructive service as aforesaid.

§ 73.49 *Expenses of elections.* All expenses of elections including compensation to the members of the election board and any clerical assistants designated by the Superintendent under § 73.32, stationery supplies, printing and postage shall be borne by the Osage Tribe.

§ 73.51 *Nominating conventions and petitions.* Conventions shall be held in Osage County, Oklahoma, on or before the first Monday in April of the year in which a quadrennial election is held, and there shall be written reports of such conventions, duly certified by the secretary or presiding officer, showing total number of qualified voters in attendance, together with the names of candidates nominated for the various offices: *Provided*, That at least 25 qualified voters shall have been in attendance at any such convention; also, names of any independent candidates nominated by petition of not less than 25 qualified voters, each signature to be witnessed by two persons, shall be filed with the supervisor not later than 5:00 p. m. on the first Monday in April of the year in which a quadrennial election is held in order that such names may be placed on the official ballot.

[F. R. Doc. 58-2218; Filed, Mar. 24, 1958; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1603]

[1812740]

[BLM 043659]

FLORIDA

REVOKING EXECUTIVE ORDER OF FEBRUARY 9, 1842, AND EXECUTIVE ORDER NO. 8508 OF AUGUST 8, 1940, WITHDRAWING PORTION OF RELEASED LANDS FOR USE OF DEPARTMENT OF NAVY FOR NAVAL PURPOSES

By virtue of the authority vested in the President by section 1 of the act of July 9, 1918 (40 Stat. 845, 848; 10 U. S. C. 1341) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of February 9, 1842 and Executive Order No. 8508 of August 8, 1940, which withdrew the following-described lands in Florida for use of the War Department for military purposes, are hereby revoked:

(a) In the Executive Order of February 9, 1842:

A tract of land on the easterly end of Fosters Bank, together with the former Robertson Island now connected thereto, located in fractional sections 33 and 34, T. 3 S., R. 31 W., Tallahassee Meridian.

The tracts described aggregate approximately 135 acres.

(b) In Executive Order No. 8508:

T. 3 S., R. 31 W.,
Sec. 24, lot 3;
Sec. 25, lot 2;
Sec. 28, lot 1 and 2;
Sec. 30, lot 2.
The areas described aggregate 195.26 acres.

2. Subject to valid existing rights, the following-described lands, which are the lands released from withdrawal by paragraph 1 (a) of this order, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Department of the Navy for naval purposes, provided, however, that the withdrawn minerals in the lands shall remain under the jurisdiction of the Department of the Interior, and no disposition shall be made of such minerals except under the applicable United States mining and mineral-leasing laws, and then only after such modification of the provisions of this order as may be necessary to permit such disposition:

TALLAHASSEE MERIDIAN

T. 3 S., R. 31 W.,
Sec. 34, lot 1;
Secs. 33 and 34, the former Robertson Island, now connected to lot 1, sec. 34, unsurveyed.
The tracts described aggregate approximately 135 acres.

3. The lands described in paragraph 1 (b) of this order aggregating approximately 195.26 acres, are hereby classified for disposal pursuant to the act of June 14, 1926 (44 Stat. 741) as amended by the act of June 4, 1954 (68 Stat. 173; 43 U. S. C. 869). This classification precludes the appropriation of the lands under any other public land law except under the provisions prescribed by the act.

[SEAL] FRED G. AANDAHL,
Assistant Secretary of the Interior.

MARCH 18, 1958.

[F. R. Doc. 58-2169; Filed, Mar. 24, 1958; 8:45 a. m.]

[Public Land Order 1604]

[53592]

ALASKA

PARTIALLY REVOKING PLO 693 OF DECEMBER 12, 1950, WHICH WITHDREW PUBLIC LANDS FOR USE OF DEPARTMENT OF AIR FORCE FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Public Land Order No. 693 of December 12, 1950, which withdrew public lands in Alaska for use of the Department of the Air Force for military purposes, is hereby revoked so far as it affects any land not included in the following-described portion of Parcel A of that order:

PARCEL A

Beginning at the point of intersection of latitude 64°57'45" N., and longitude 148°20' W., thence
South, 4560' approximately along longitudinal line;
West, 6480' approximately along latitude 64°57' N.;
North, 4560' approximately along longitude 148°22'30" W.;
East, 6480' approximately along latitude 64°57'45" N., to point of beginning.
The tract described contains approximately 679 acres.

2. This order shall not affect the lands included in Parcel B of Public Land Order No. 693.

3. Subject to any existing valid rights and the requirements of applicable law, the restored lands are hereby opened to settlement and to filing of such applications, selections, and locations as are allowable on unsurveyed lands in accordance with the following:

a. Subject to the applications and claims described in paragraph b (1) below, the lands, beginning at 10:00 a. m. on April 24, 1958, will be subject to settlement under the Homestead and Alaska Home Site Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended. Beginning at 10:00 a. m. on July 24, 1958, any remaining lands will be subject to settlement under these laws by other qualified persons.

b. Applications and selections under the nonmineral public land laws and applications and offers under the mineral-leasing laws may be presented to the Manager mentioned below, beginning on